

		available at https://scocablog.com/the-california-supreme-courts-average-time-from-briefing-to-oral-argument-2023-24/.) This Court also takes judicial notice of the Supreme Court’s docket in <i>Leeper</i>, which shows that the case was fully briefed as of 3/11/2026, and oral argument has not yet been set. Accordingly, the Court also DENIES Defendant’s request to stay this case pending the California Supreme Court’s resolution of <i>Leeper</i>. Moving party shall give notice.
105	Valenzuela vs. Texas De Brazil Rancho Corporation 2023-01356359	Motion for Final Approval of Class Action and PAGA Settlement The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiffs Kayla Jade Valenzuela, Brittany Marticorena, Daniel Madrid, Olivia Matley, Aaliyah Taylor, Caitlin Croxford, and Priscila Pena’s Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA matter. On 10/13/2023, Plaintiffs Kayla Jade Valenzuela, Brittany Marticorena, Daniel Madrid, Olivia Matley, Aaliyah Taylor, Caitlin Croxford, and Priscila Pena, individually and on behalf of all similarly situated aggrieved employees, filed a class action complaint against Defendants Texas de Brazil Rancho Corporation, Texas de Brazil Carlsbad Corporation, Texas de Brazil Concord Corporation, Texas de Brazil Fresno Corporation, Texas de Brazil Irvine Corporation, Texas de Brazil Oxnard Corporation, and Texas de Brazil Corporation. (ROA #2.) On 12/21/2023, as a matter of right, Plaintiffs filed the operative first amended complaint (FAC). (ROA #23.) The FAC alleges various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (<i>Id.</i>) On 4/4/2025, Plaintiffs filed a Motion for Preliminary Approval of Class Action and PAGA Settlement. (ROA #123.) On 8/14/2025, at the 2nd hearing on the matter, the Court granted the motion. (ROA #147.) On 9/10/2025, the Court entered the order granting preliminary approval. (ROA #158.) On 3/10/2026, Plaintiffs filed the instant Motion for Final Approval of Class Action and PAGA Settlement. The motion seeks approval of the Class Action and PAGA Settlement Agreement (“Settlement” or “Settlement Agreement”), which provides for the settlement of Plaintiffs’ class and PAGA claims for the non-reversionary gross settlement amount (“GSA”) of \$638,737 after the triggering of the escalator clause, which increased the GSA from \$500,000 by \$138,737. The GSA includes \$63,873.70 allocated for PAGA penalties. On 4/2/2026, at the first hearing on the motion, the Court ruled that an attorneys’ fee award totaling \$191,621.10 or 30% of the GSA, constituting a 0.86 multiplier against the lodestar amount, is fair, adequate, and reasonable

for a class and settlement of this size, including considering the action's contingent nature and the results achieved. (ROA #184.) The Court further ruled that a Class Representative Service Payment of \$2,554.95 for each of the seven (7) named Plaintiffs is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiffs' contributions to the case. (*Id.*) The Court also continued the first hearing on the motion and asked counsel to address various issues. (ROA #184.)

The Court now finds that the Class is comprised of 1,397 Class Members, defined as: "All of Defendants' non-exempt employees in California during the Class Period." The Class or Settlement Period is 10/13/2019 to 8/14/2025.

The Settlement also includes 775 Aggrieved Employees, defined as: "All of Defendants' non-exempt hourly employees during the PAGA Period." The PAGA Period is 10/16/2022 to 8/14/2025.

On 1/12/2026, the settlement administrator, Phoenix Settlement Administrators, sent class notices via U.S. mail to 1,397 Class Members. As of 5/14/2026, ten (10) class notices were returned to the administrator as undeliverable. After skip tracing, eight (8) updated addresses were obtained, and those class notices were remailed. Therefore, two (2) class notices were deemed undeliverable.

The administrator reports that as of 5/14/2026, three (3) requests for exclusion were received from Jeff Cardenas, Marcos Mendoza, and Valentin J. Rangel, who will not be bound by the Settlement or judgment in this case.

Also as of 5/14/2026, zero objections and zero workweek disputes were received by the administrator.

Therefore, 99.79% of the Class is participating in the Settlement.

The Court approves the following specific awards and disbursements:

- Attorneys' fees totaling \$191,621.10 awarded to Class Counsel, Robinson di Lando, A Professional Law Corporation;
- Litigation costs totaling \$15,000.00 awarded to Class Counsel, Robinson di Lando, A Professional Law Corporation;;
- Settlement administration costs of \$ awarded to \$17,500.00;
- Class Representative Service Payments of \$2,554.95 each awarded to Plaintiffs Kayla Jade Valenzuela, Britany Marticorena, Daniel Madrid, Olivia Matley, Aaliyah Taylor, Caitlin Croxford, and Priscila Pena, totaling \$17,884.65; and
- \$47,905.28 remitted to the Labor and Workforce Development Agency (LWDA) for its 75% share of the \$63,87370 allocated to PAGA penalties.

The Net Settlement Amount payable to all Class Members is \$311,825.97, including the \$15,968.425 in PAGA penalties to be distributed to the

Aggrieved Employees as their 25% share, in accordance with the terms of the Settlement. Pursuant to the Settlement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.

Within five (5) court days, Class Counsel must submit another revised Proposed Order and Judgment with the following revisions:

1. The Court prefers the use of a combined “order and judgment. Thus, the revised proposed order and judgment should be clearly captioned as such (e.g., “Order of Final Approval and Judgment”).
2. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. In particular, the Court notes that the amounts set forth in ¶ 8.d. as the LWDA’s 75% share and the Aggrieved Employees’ 25% share of the \$63,873.70 allocated to PAGA Penalties is incorrect in the proposed order submitted at ROA #188.
3. This department hears Law & Motion on Thursdays at 2:00 p.m.. The parties must select a Final Accounting hearing date on a Thursday at 2:00 p.m.
4. Pursuant to Code of Civil Procedure 384.5 and Government Code section 68520, subdivision (a), because the Settlement Agreement provides for distribution of uncashed funds to a cy pres recipient, Legal Aid at Work, the proposed order and judgment must contain (1) the causes of action resolved by the judgment, with a summary of the underlying allegations; (2) the name of the cy pres recipient; and (2) the purpose of the distribution to the cy pres recipient and how the cy pres recipient plans to expend the funds or proceeds received, if known.

Final Accounting will be set in accordance with the Court’s Order of Final Approval and Judgment after Class Counsel proposes a new realistic date.

Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, disbursed to the cy pres recipient, Legal Aid at Work. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Also, because the Settlement Agreement provides for distribution of the unclaimed funds to a cy pres recipient, Legal Aid at Work, after such distribution has been made by the settlement administrator, Class Counsel must, in addition to submitting the administrator’s final report, also submit a Proposed Amended Order Granting Final Approval and Judgment that specifies the amount distributed to the cy pres recipient in compliance with Code of Civil Procedure sections 384, subdivision (b), and 384.5, and Government Code section 68520, subdivision (a).

		Plaintiffs are ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days after entry of the Final Approval Order and Judgment.
106	Arevalo vs. National Signal LLC 2024-01382811	Motion for Preliminary Approval of Class Action and PAGA Settlement CONTINUED AND OSC SET FOR FAILURE TO COMPLY WITH COURT'S 11/6/25 ORDER
107	Barnuevo vs. Prime Healthcare La Palma, LLC 2021-01223132	Application/Request (Motion to Approve a PAGA Settlement) Plaintiffs Maylo Barnuevo, Nelson Basilio, Eric Adrian Estrella, Eric Brian Estrella, Ali Khatatba, Patrick Santiago Lim, Karen Sampson's Motion for Approval of PAGA Settlement is CONTINUED to September 17, 2026 at 2:00 p.m. in Department CX102 in order to give Plaintiffs' counsel an opportunity to address the issues identified below. This is a Labor Code violation case, including a PAGA claim. On 9/24/2021, Plaintiffs Maylo Barnuevo, Nelson Basilio, Eric Adrian Estrella, Eric Brian Estrella, Ali Khatatba, Patrick Santiago Lim, Karen Sampson filed a complaint for Labor Code violations against Defendant Prime Healthcare La Palma LLC. (ROA #2.) On 11/30/2021, Plaintiffs filed a first amended complaint, which included adding a PAGA cause of action. (ROA #9.) The operative complaint is the second amended complaint (SAC), filed on 1/14/2026. (ROA #135.)